

Hearing: Motion for Leave to File First Amended Complaint

Date: September 16, 2026

TENTATIVE RULING

On January 30, 2025, Laura O'Brien and Bernard O'Brien filed this action against the City of San Luis Obispo, Wilson Excavating and Grading, Inc., Ashley and Vance Engineering, Inc. (AVE), and Contech Engineered Solutions, LLC. The dispute concerns Laura O'Brien's fall into a storm drain curb inlet in May 2024.

Currently on calendar is Plaintiffs' motion seeking leave to file a first amended complaint. Moving away from the Judicial Council form complaint for personal injury, the proposed amended complaint "expand[s] and restate[s] the existing causes of action with a comprehensive factual narrative," and seeks to add a professional negligence claim against AVE. (Mtn., p. 3, ll. 15-19.)

AVE opposes the motion on the grounds the professional negligence claim is barred by the relevant statute of limitations because Plaintiffs failed to comply with Code of Civil Procedure section 411.35.¹ The Court agrees and denies Plaintiffs' motion to amend.

I. LEGAL STANDARD

The Court may allow a party to amend "any pleading or proceeding" at any time in the furtherance of justice, and upon such terms as may be proper. (§ 473(a)(1).) The Court's discretion is to be exercised liberally to permit amendment of pleadings. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) " '[A]bsent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.' [Citation.]" (*S.C. v. Doe I* (2025) 115 Cal.App.5th 365, 376, see also p. 383 [denial due to delay or lack of diligence is unwarranted absent prejudice to the opposing party].)

The Court, however, may also deny a motion to amend when the proposed amendment fails to state a cause of action. (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230; *Yee v. Mobilehome Park Rental Review Bd. (City of Escondido)* (1998) 62 Cal.App.4th 1409, 1429 [proposed amendment properly rejected when subject to statute of limitations].)

II. DISCUSSION

Section 411.35(a) requires a plaintiff's attorney in any action asserting professional negligence against an engineer to file and serve a certificate of merit "on or before the date of service of the

¹ All statutory references are to the Code of Civil Procedure unless otherwise indicated.

complaint.”² The certificate must state that the attorney has reviewed the facts of the case and consulted with a professional or teacher in the same discipline as the defendant (who the attorney reasonably believes is knowledgeable in the relevant issues), and that the attorney has concluded based on that consultation that “there is reasonable and meritorious cause for the filing of [the] action.” (§ 411.35(b)(1).) The failure to file the certificate of merit is grounds for a demurrer or a motion to strike. (§§ 411.35(g), 430.010(h).)

Plaintiffs filed the certificate of merit on May 11, 2026. AVE responds this is after the two-year limitations period set forth in section 339(1), preventing Plaintiffs from stating a cause of action for professional negligence. In support, AVE cites *Curtis Engineering Corp. v. Superior Court* (2017) 16 Cal.App.5th 542 (*Curtis*).

In *Curtis*, the plaintiff filed a complaint without filing and serving a certificate of merit. Seven months later, after the statute of limitations had run, the plaintiff filed a first amended complaint along with a certificate of merit. The plaintiff had also failed to file an “excuse certificate” within the 60-day period set forth in section 411.25(b)(2). The appellate court held “a certificate filed after expiration of the statute of limitations and more than 60 days after the filing of the original pleading [citation] does not relate back to the filing of the original pleading.” (*Curtis, supra*, 16 Cal.App.5th at p. 545; compare with *S.C. v. Doe I* (2025) 115 Cal.App.5th 365, 386-387 [relation back doctrine applied to amend a timely filed certificate of merit].) The appellate court concluded “[b]ecause there is no possibility of curing this defect, the demurrer must be sustained without leave to amend.” (*Curtis, supra*, 16 Cal.App.5th at p. 551.)

Plaintiffs respond *Curtis* does not apply because its holding was narrow and stood for the proposition that the relation back doctrine cannot be used to give a plaintiff “an unlimited amount of time to obtain the necessary consultation.” (*Curtis, supra*, 16 Cal.App.5th at p. 549.) Plaintiffs argue unlike *Curtis*, the purpose of section 411.35 was fulfilled here because they obtained and served the certificate of merit four months before the statute of limitations had run. AVE’s counsel confirms receipt of the certificate of merit in September 2025. (Bennett Decl., ¶ 3, Ex. 2.)

Section 411.35, however, requires that the certificate of merit be filed and served. Plaintiffs do not dispute section 339(1) is the applicable statute of limitations or that the certificate of merit was filed after the two-year deadline, identified by the parties as May 6, 2026. AVE informed Plaintiffs of the certificate of merit issue on June 30, 2025. (Bennett Decl., ¶ 2, Ex. 1.) The fact the certificate of merit was timely served on AVE’s counsel does not remedy the failure to timely file the certificate of merit.

ORDER (PROPOSED)

The motion for leave to file a first amended complaint is denied for failure to state a cause of action for professional negligence against AVE.

² Section 411.35(b)(2) provides an extension to comply if the attorney is unable to obtain the required consultation before the statute of limitations would run. The certificate must still be filed within 60 days after the complaint is filed. (§ 411.35(b)(2).)